

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 9, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.
Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

Line 8	25CV457167	Gita Patel v. Sunil Garg et al.	Click LINE 8 or scroll down for ruling.
Line 9	25CV480148	Eitan Cadouri v. Satish Appalakutty et al.	Plaintiff Eitan Cadouri's motion to enter judgment by stipulation. (Code Civ. Proc., § 664.6.) Notice is not proper. The motion was served on a law firm, but no defendant has appeared in this action and there is no indication that law firm represents the defendants. Court default has been entered against defendants Vistalytics, Inc., and Satish Appalakutty. But they were not in default when the motion was filed. The court observes that paragraph G of the October 2025 stipulation for entry of judgment attached as an exhibit to a declaration indicates the "parties agree that judgment may be entered pursuant to this stipulation on an ex parte application by Plaintiff. Defendants waive any right to have a hearing on a noticed motion." The court cannot decide a noticed motion where there is no proper notice. The motion is DENIED WITHOUT PREJUDICE to the filing of a properly noticed motion or an ex parte application that is consistent with any agreement by the parties. The court will prepare the order.

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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	24CV453808	CSL Real Estate Investments, LLC, a California limited liability company v. LQDX, Inc., a Delaware Corporation	Motion to be relieved as counsel for defendant LQDX, Inc.: <u>parties to appear</u> .

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Calendar Line 1

Case Name: Tai Le et al. v. Vinh Hong

Case No.: 25CV468482

This is an action for constructive and retaliatory eviction brought by plaintiffs Tai Le, individually and as guardian ad litem for minors Thy Le and Thao Le (Plaintiffs) against Vinh Hong (Hong) and Doe defendants.

Plaintiffs' original and still operative complaint alleges nine causes of action: (1) violations of the San Jose Municipal Code; (2) unfair business practices; (3) breach of the implied warranty of habitability; (4) breach of the covenant of quiet enjoyment; (5) negligence; (6) negligent infliction of emotional distress; (7) constructive eviction; (8) retaliation (Civ. Code, § 1942.5); and (9) negligence (alleged by minor Thy Le only). There are no exhibits attached to the complaint.

At issue is Hong's motion to strike portions of the complaint, which Plaintiffs oppose.

Legal Standard for Motions to Strike

Under Code of Civil Procedure section 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. Irrelevant matter includes (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, and (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., § 431.10, subds. (b), (c).) A motion to strike is not a "procedural 'line item veto' for the civil defendant." (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.) The grounds for a motion to strike must appear on the face of the challenged pleading or from matters of which the court may take judicial notice. (Code Civ. Proc., § 437, subd. (a); *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.) In ruling on a motion to strike, the court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 (*Turman*).) California Rules of Court, rule 3.1322(a) requires that "[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Cal. Rules of Court, rule 3.1322(a).)

As with a demurrer, the court cannot consider extrinsic evidence in ruling on a motion to strike. The court has considered the declaration from Hong counsel James Huan Ly only to the extent it discusses the meet and confer efforts required by statute. The court has not considered the declaration from Plaintiffs' counsel Jake Huynh, or the exhibit attached to the opposition.

Discussion

Hong moves to strike the request for "punitive damages" in paragraph 66 of the complaint (part of the eighth cause of action) and the request for "punitive damages pursuant to Civil Code § 3294 against Defendants and/or as otherwise allowed by law" in paragraph 7 of